

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN VIETNAM

Complete Community Opposition How-To

*This guide uses the Vietnamese terms and bodies you'll actually run into — the **■TM** (EIA) and the environmental licence, MONRE and the People's Committees, consultation via the commune authority and the Fatherland Front, the complaint (**khi■u n■i**), denunciation (**t■ cáo**), and administrative lawsuit — and explains each in plain words the first time. Vietnam is a one-party state with a tightly restricted civic space, so this guide favours technical, lawful, institutional work and puts your safety first.*

INTRODUCTION & FRAMEWORK

On the upper **Dong Nai River**, developers planned two hydropower dams — **Dong Nai 6 and 6A** — that would have destroyed some **327 hectares of forest**, **128 of them inside Cat Tien National Park**, and damaged the Bau Sau (Crocodile Lake) Ramsar wetlands within it. **Cat Tien** is a UNESCO Biosphere Reserve, home to roughly 1,700 rare plant species and 700 animals and birds. There were no mass street protests — that is not how this was won in Vietnam. Instead, the **Vietnam Rivers Network** (a coalition of Vietnamese NGOs and state-employed scientists), **independent experts**, the **press**, and even **provincial authorities** who submitted scientific papers against the dams, together with the **UNESCO biosphere committee**, dismantled a flawed environmental study and pressed it through official channels. In **2013 the government cancelled both dams**. A national park was saved — through rigorous science, the press, and institutional pressure rather than confrontation.

The Vietnam Rivers Network — Vietnamese NGOs, state-employed scientists, the press, and even provincial authorities — that saved Cat Tien National Park from the Dong Nai dams did it through rigorous science, the press, and institutional pressure rather than confrontation, and the tools it used are real, if narrow. Many projects need an **environmental impact assessment (■TM)** and an **environmental licence** before operating. The **Law on Environmental Protection 2020** requires the owner to **consult the affected community** and requires the approved EIA and licence to be **publicly disclosed**. And citizens have the right to **complain (khi■u n■i)** about an administrative decision, to **denounce (t■ cáo)** wrongdoing, and to bring an **administrative lawsuit** in the People's Court. But these tools have grave limits, and this guide states them plainly, because they define how you must work here. This was a **rare win** — the same network's broader influence has been limited, and Vietnam has built dozens of other dams. Vietnam is a **one-party socialist state** that prioritises state-directed development, where **independent civil society operates in a tightly restricted, closely monitored space**, consultation is often a formality, the courts are not independent of the Party-state, and — most seriously — the government has **imprisoned prominent environmental advocates**. So opposition here is nothing like opposition in an open democracy: the safest and most effective work is **technical, procedural, lawful, and institutional** — insisting the EIA and consultation follow the law, using the disclosed documents, raising specific legal defects through the complaint system, and working through permitted channels — not protest or independent campaigning, which can be treated as political and dangerous.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A Vietnamese project needs its **■TM/EIA and environmental licence** (now publicly disclosed); it must **consult the affected community**; a defect can be raised through **complaint, denunciation, or an administrative lawsuit**; and — the Dong Nai lesson — **rigorous science, the press, and institutional channels** can move a decision. Every one of those is a link you can grab. **Find the one closest to your hand and pull — through the machinery, and safely.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation — safety first:

- **Rigorous science plus the press and institutional channels is Vietnam's proven safe lever** — it cancelled the Dong Nai dams.
- **If the EIA is defective or wasn't disclosed, or consultation was skipped, those are real, lawful grounds** — through the complaint system.
- **A protected area or an international commitment (UNESCO, Ramsar) adds weight** — Cat Tien's status mattered.
- **Independent protest is dangerous** — advocates have been imprisoned, so work technically, lawfully, and institutionally, and protect your people.

Read the whole guide once before you move. Two habits run through it: **use the machinery, not confrontation** — the EIA, disclosure, consultation, the complaint system, and rigorous science through official channels — and **combine them** safely: the documents, the science, the legal defects, careful press, permitted channels. That combination, kept safe, is how the Dong Nai dams were stopped.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core environmental steps are the **■TM (EIA)** and the **environmental licence**, appraised by **MONRE** (the environment ministry) or the provincial **Department of Natural Resources and Environment**, and approved at the appropriate level. The **People's Committees** (provincial and local) hold planning and approval powers — and, as at Dong Nai, a province can turn against a project. Consultation runs through the **commune authority and the Fatherland Front**. And the **People's Courts** hear administrative lawsuits — though they are not independent of the Party-state. Know which decision you can reach, through the machinery.

How a Project Moves — and Where You Jump In

The ■TM/EIA and consultation. The owner prepares the **■TM**, must **consult the affected community**, and the approved EIA and licence are **publicly disclosed**. *Your opening — and it arms every later step:* obtain the disclosed EIA, expose its defects with rigorous science, and ensure consultation genuinely happened.

The environmental licence. The authority issues the licence. *Your opening:* a licence on a defective EIA can be challenged through the complaint system.

The People's Committee approvals. *Your opening:* a provincial or local committee can be persuaded to withhold or revise approval — a province opposed the Dong Nai dams.

Operation. *Your opening:* complaint (khi■u n■i), denunciation (t■ cáo), and — cautiously — an administrative lawsuit.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company and state records set the exposure. **What it still needs** — the EIA not approved, the licence not issued, a People's Committee approval not given: whatever's missing is the soft spot. **Who's paying** — state and investor money, and any international financiers with their own standards.

Who's Supposed to Be Watching

Each is an ally or an arena — used carefully. **MONRE** and the provincial **DONRE** appraise the EIA. The **People's Committees** approve and can withhold. The **People's Courts** hear lawsuits (not independent). And — within the tightly restricted space — Vietnam's **state-employed scientists, expert networks (like the Vietnam Rivers Network), the press, and international commitments (UNESCO, Ramsar)** are the forces that reach furthest, as the Dong Nai case showed. Independent campaigning is dangerous; work through the permitted channels.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether rigorous science exposes a defect, whether a protected area or international commitment is engaged, whether a People's Committee can be moved — and, always, the danger of anything treated as political.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents (safely)	5–10%	weeks	low	The base for everything else
Exposing a defective/undisclosed EIA (with science)	20–40%	during appraisal	low	EIA sent back; conditions or a redo
Insisting on genuine consultation	15–35%	during appraisal	low	Consultation done; opinions recorded
Complaint (khi■u n■i) / denunciation (t■ cáo)	20–40%	months–yr	low	Decision reviewed or corrected
Persuading a People's Committee	20–45%	months–yr	low	Approval withheld or revised
Rigorous science + press + institutional pressure	25–50%	months–yr	low	Project cancelled (Dong Nai)
Administrative lawsuit (People's Court)	10–30%	1–3 yr	low, risky	Rarely independent — low expectations
Everything together (defect, protected area, institutional pressure)	30–55%	1–3 yr	low	Cancelled, sent back, conditioned, better outcome
Everything together (state-backed, closed space)	10–35%	years	low, risky	A better outcome — protect people first

The levers that move the needle most are **rigorous science plus the press and institutional pressure**, the **defective-EIA ground**, and **persuading a People's Committee**, backed by protected-area and international commitments. Dong Nai shows the ceiling (two dams cancelled) and the honest limit (a rare win in a closed, dangerous space). So aim for a cancelled, sent-back, or bettered project — and protect your people above all.

On cost and safety: engaging the EIA, the complaint system, and the science is low-cost, and state scientists and expert networks bring the technical weight. But independent protest is dangerous — advocates have been imprisoned — so work technically, lawfully, and institutionally, protect the vulnerable, and route risk through lawyers and permitted channels.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this EIA, this defect, this protected area — is strong. Answer five questions in writing, safely.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch?** Get the footprint and lay it over **national parks and protected areas** (like Cat Tien), Ramsar wetlands, rivers, farmland, coasts, communities. **A protected area or an international commitment (UNESCO, Ramsar) is a strong lever**, so this map matters — Dong Nai turned on a national park and a Ramsar wetland.
- 3. What stage is it at, and what's the next deadline?** Is the **■TM** in appraisal? Has the licence issued? These openings are time-bound.
- 4. What does it still need that it lacks?** An EIA not approved, a licence not issued, a People's Committee approval not given. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** Neighbouring communities, state scientists and expert networks, the press, sympathetic officials. Dong Nai united scientists, the press, and a province.

What this looks like in real life. A community learns a dam or plant is planned that harms a national park, its EIA thin. The five questions yield: a company behind it; a site harming a protected area (the lever); an EIA in appraisal; a project still needing its licence and approvals; and a coalition of scientists, press, and officials. That's the Dong Nai pattern — expose the flawed EIA with rigorous science, invoke the protected area, and press through institutional channels.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and Dong Nai was won on rigorous science. Build it in three layers, **safely**.

Layer one: the paper trail. Get the documents the decision rests on — the **■TM/EIA** (now publicly disclosed), the environmental licence, the consultation records, the People's Committee approvals, and the protected-area boundaries. Use the disclosure the 2020 Law requires. Then read them hard for flaws — an understated impact, an ignored alternative, a defective or undisclosed EIA, a consultation that never genuinely happened, a project encroaching a protected area.

Layer two: the ground truth. Dated, located photographs and video of the site, the park, the river, the wetlands — baseline evidence most of all — and, carefully, the testimony of affected residents. In this restricted context, weigh the risk to anyone documenting.

Layer three: the science and the protected-area map. Gather **rigorous science** (as the Vietnam Rivers Network did), and lay the project over the national park, Ramsar wetlands, and rivers, so the protected-area lever and the harms are undeniable. This feeds the institutional case and the press.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The TM/EIA (disclosed), the licence, the consultation records, the People's Committee approvals, the protected-area boundaries** — from MONRE/DONRE and the public disclosure (8A).
- **Rigorous independent science** — from state scientists and expert networks (like the Vietnam Rivers Network).
- **Ownership and financing** — company and state records.
- **The science-and-protected-area map** — the national park, Ramsar wetlands, and rivers, laid over the project.
- **Dated evidence and consented testimony** — photographs marked with date and place, gathered so no one is put at risk.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — but in Vietnam, build it **through permitted channels and expertise, not independent protest**, because campaigning can be treated as political. Four moves.

Start with a tight, trusted core. The residents most affected, the people who know the land and river, a few tireless organisers, and respected local figures — people you trust.

Bring in state scientists and expert networks — the decisive allies. Dong Nai was won by the **Vietnam Rivers Network** and state-employed scientists whose rigorous critique the government could not ignore. This is Vietnam's safest, strongest route — build these expert alliances.

Work through permitted channels. The commune authority, the Fatherland Front, sympathetic officials, and the provincial People's Committee (which turned against the Dong Nai dams). Use the consultation and the complaint system as designed.

Bring in lawyers — and plan for safety above all. Lawyers who run administrative and environmental matters, and a serious safety plan. Advocates have been imprisoned — keep everything technical, lawful, and institutional, avoid anything that can be branded political, protect the vulnerable, and route risk through lawyers and permitted channels.

Build to last, and stay safe. Vietnamese fights run for years within tight limits. Build clear roles, a secure archive, careful communications, a way to decide together, and a safety plan — and bank each defect corrected, each better condition, each delay as a win.

STEP 4: THE EIA, CONSULTATION, THE COMPLAINT SYSTEM & THE COURTS

Vietnam's levers are the machinery and expertise — not confrontation — and safety comes first.

Expose the EIA with Science, and Insist on Consultation

Everything downstream is stronger if you obtained the **disclosed EIA**, exposed its defects with **rigorous science**, and ensured the required **consultation** genuinely happened. A defective or undisclosed EIA, or a skipped consultation, is a real, lawful ground — and the 2020 Law's disclosure requirement is your entry.

The Complaint System — Complaint, Denunciation, Lawsuit

Citizens may **complain (khiếu nại)** about an administrative decision, **denounce (tố cáo)** wrongdoing, and, ultimately, bring an **administrative lawsuit** in the **People's Court**. Use the complaint and denunciation routes to raise specific legal defects through the proper channels. The lawsuit is a genuine but limited route — the courts are not independent of the Party-state, so keep expectations low and pair it with the institutional and scientific pressure that actually moves decisions.

Institutional and Protected-Area Pressure — the Proven Route

The route that actually won Dong Nai: **rigorous science + the press + institutional channels** (state scientists, expert networks, sympathetic officials, the provincial People's Committee, and international commitments like UNESCO and Ramsar). A protected area or an international obligation adds real weight. This — not protest — is Vietnam's proven, safe lever.

The Honest Limits

Straight talk: the EIA, the complaint system, and institutional pressure are real levers, but consultation is often a formality, the courts aren't independent, the state backs development, and — the gravest limit — independent campaigning is dangerous and advocates have been imprisoned. So use the machinery — the disclosed EIA, rigorous science, the complaint system, institutional and protected-area pressure — keep everything technical and lawful, protect your people, and count a cancelled, sent-back, conditioned, or bettered project as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Science becomes a defect. Not "the project is bad" but *"the EIA understates the loss of 128 hectares inside a national park and the harm to a Ramsar wetland — a defect the science proves,"* as at Dong Nai.

A protected area becomes an obligation. *"This harms a UNESCO Biosphere Reserve and a Ramsar site — Vietnam's own international commitments forbid it."*

A disclosure gap becomes a ground. *"The EIA was not disclosed as the 2020 Law requires — the decision is defective."*

The harm becomes an institutional case. *"The forest, the wetlands, the river our communities depend on — for a project a flawed study tried to wave through."*

Match it to the venue: the EIA defects (with science) to MONRE/DONRE; the legal defect to the complaint system; the approval to the People's Committee; the international obligation to UNESCO/Ramsar; the case — carefully — to the press.

STEP 5: MEDIA STRATEGY

In Vietnam, the **press within permitted bounds** is a real lever — Dong Nai was carried by newspapers reporting the scientists' case — but independent campaigning is dangerous, so handle media with great care.

Lead with science and place, not politics. Not "the government is corrupt" but "the forest, the wetlands, the river our communities depend on — and the science of what will be lost." Use your strongest material: rigorous science, dated evidence, the protected-area map, and — carefully — human voices, without exposing anyone.

Work through permitted channels. Vietnamese newspapers reported the Dong Nai scientists' findings; sympathetic officials and expert networks amplify; international commitments (UNESCO, Ramsar) add weight. Make it easy: the science in plain terms, captioned evidence, accurate summaries, a map — and keep it technical, never political.

Two hard rules. Accuracy above all — one exaggeration can be used against you, especially where you rely on science. And protect people above everything — avoid anything that can be branded political.

EMAILS & LETTERS

Make them your own; keep them technical, lawful, and calm; keep copies safely; and protect anyone at risk.

8A — Request for the EIA and records (to MONRE/DONRE).

Subject: Request for the disclosed EIA — [project].

"We, residents of [place], request the disclosed ■TM/EIA, the environmental licence, the consultation records, and the protected-area boundaries for [project] at [location], as the 2020 Law provides. [Contact.]"

8B — Exposing the EIA defect (with science).

Subject: Defects in the EIA — [project].

"We, residents of [place], identify defects in the EIA for [project]: [it understates the loss inside the national park / the harm to the Ramsar wetland; the science shows otherwise; it was not properly disclosed]. We ask that it be sent back. [Attach the scientific analysis.]"

8C — Complaint (khi■u n■i).

Subject: Khi■u n■i — decision on [project].

"We, residents of [place], complain about the [EIA approval / licence] for [project], which [rests on a defective, undisclosed EIA / skipped consultation]. We ask that it be reviewed and corrected. [Attach evidence.]"

8D — To the People's Committee.

Subject: Request to withhold or revise approval — [project].

"We, residents of [place], ask the People's Committee to withhold or revise approval of [project], which harms [our national park / river / community] on a flawed EIA. [Attach evidence.]"

8E — Denunciation (t■ cáo).

Subject: T■ cáo — wrongdoing in [project].

"We report wrongdoing in [project]: [specifics — a falsified study, a skipped legal step]. We ask that it be investigated. [Attach evidence.]"

8F — To an expert network / state scientists.

Subject: Request for scientific support — [project].

"Our community faces [project], which harms [a national park / river]. We ask for rigorous scientific analysis of its impacts, to raise through the proper channels — as the Vietnam Rivers Network did for the Dong Nai dams. [Contact and evidence summary.]"

8G — To the press (carefully, technically).

Subject: Scientific concerns about [project] and [national park].

"For generations the people of [place] have depended on [the forest / wetlands / river] at [location] — a protected area of national and international importance. The science shows [project] would cause serious, irreversible harm. We can provide the analysis, evidence, and a map. [Contact.]"

8H — Rallying the community (safely, lawfully).

Subject: We can protect our park — here's how, lawfully.

"[Project] threatens [our park / river / wetlands]. The Dong Nai dams were stopped by science, the press, and official channels — not protest. Through the disclosed EIA, rigorous science, the complaint system, and the People's Committee, we have a real chance — working lawfully and protecting one another above all. Please join us — technical and safe. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order — lawfully and safely:

1. **Nail down the project, whether it harms a protected area, and its EIA.** The protected area and the flawed EIA are your levers.
2. **Get the disclosed EIA (8A) and expose its defects with rigorous science (8B).**
3. **Bring in state scientists and expert networks (8F) — the decisive, safe allies.**
4. **Use the complaint system — complaint and denunciation (8C/8E) — for legal defects.**
5. **Press the People's Committee to withhold or revise approval (8D).**
6. **Work the press within permitted bounds, technically (8G).** Dong Nai was stopped this way.

Even lean, those six use science, the machinery, and institutional pressure — Vietnam's proven, safe levers — while keeping your people safe.

WHEN THE SYSTEM IS TILTED

Vietnam's tools are narrow and the tilt is severe, so plan for it — safety first.

When the state backs the project. Work through the machinery — the EIA, rigorous science, the complaint system, the People's Committee, and international commitments — and avoid anything that can be branded political.

When consultation is a formality. A skipped or token consultation is a legal defect. Document it, and raise it through the complaint system.

When the courts aren't independent. Keep expectations of the lawsuit low; rely on science, the complaint system, institutional pressure, and international obligations instead.

When advocates are targeted. Independent campaigning is dangerous, and advocates have been imprisoned. Keep everything technical, lawful, and institutional, protect the vulnerable, and never let the fight be framed as political opposition.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Vietnam has documented problems with the capture of projects by state and business interests, so this matters — approach it with great care.

How to spot it. EIAs approved against the science; studies written for the owner; consultation faked; approvals steered to the connected; benefits to a few while the community carries the harm.

Who's supposed to guard against it. The **complaint (khiếu nại)** and **denunciation (tố cáo)** systems, the **Government Inspectorate**, and Party disciplinary bodies handle wrongdoing. MONRE's appraisal is the environmental machinery. And, within limits, the **press and expert networks** have exposed flawed projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Do not make public accusations you can't back; in this space they can be dangerous. Route serious evidence through the denunciation system, trusted lawyers, and expert networks, protect witnesses above all, and pair exposure with the scientific and EIA case.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, safely. The documents build your proof; the rigorous science aims it; expert allies and permitted channels build the pressure; the EIA defect, the complaint system, and the People's Committee press it; careful press and international commitments add weight. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, any protected area, and its EIA; get the disclosed EIA and expose defects with science; bring in state scientists and expert networks; ensure consultation happened; request the records safely.

In the thick of it (months–years): raise defects through the complaint and denunciation systems; press the People's Committee; invoke international commitments (UNESCO, Ramsar); work the press technically.

The long haul (years): carry the institutional and (cautiously) legal case through; keep the expert alliances and the science alive; hold the line for a cancelled, sent-back, conditioned, or bettered project — keeping your people safe throughout.

FINAL ASSESSMENT

Stopping a destructive project in Vietnam can be done — rigorous science, the press, and official channels cancelled the Dong Nai 6 and 6A dams and saved a national park. Hold both truths, and never forget the danger. Vietnam's tools are real, if narrow: an EIA and licence, now publicly disclosed; a consultation requirement; the complaint, denunciation, and lawsuit routes; and — the proven, safe lever — rigorous science through the press and institutional channels. And the constraints are heavy: a one-party state, a tightly restricted civic space, formulaic consultation, courts that aren't independent, and the imprisonment of advocates.

Here's the discipline that wins, and it stays technical, lawful, and institutional. Establish whether it harms a protected area, and get the disclosed EIA. Expose its defects with rigorous science, and bring in state scientists and expert networks — the decisive, safe allies. Use the complaint system for legal defects, press the People's Committee to withhold approval, and invoke international commitments. Work the press within permitted bounds, technically, never politically, and protect your people above every outcome. Count a cancelled, sent-back, conditioned, or bettered project as wins. That's what the Dong Nai dams did — the science, the press, and the institutional channels together — and the advocates Vietnam has imprisoned are the reason your work must stay lawful and your people protected. So can you — through the machinery, and safely.